

1968 P Cr. L J 212

[Supreme Court]

Present : A. R. Cornelius, C. J. and Fazle-Akbar, J

MUHAMMAD ASHIQ FAQIR-Petitioner

versus

THE STATE-Respondent

Petition for Special Leave to Appeal No. 180 of 1967, decided on 4th October 1967.

(On appeal from the order of the High Court of West Pakistan, Lahore, dated the 24th April 1967, in Criminal Appeal No. 691 of 1963).

Appeal-----

----High Court dismissing petitioner's appeal against conviction under Ss. 420 & 468, P. P. C. for want of prosecution Leave to appeal sought on ground that once a criminal appeal is admitted, it cannot be dismissed for non prosecution but must be decided on merits-Point raised, held, merits examination Leave to appeal granted-Criminal Procedure Code (V of 1898), Ss. 411-A & 421.

Manzoor Hussain Bokhuri, Advocate Supreme Court, instructed by Masood Akhtar, Attorney for Petitioner.

Nemo for the State.

Date of hearing : 4th October 1967.

ORDER

CORNELIUS, C. J.-The petitioner Muhammad Ashiq Faqir seeks leave to appeal against an order of a learned Single Judge of the High Court dismissing his appeal against a conviction under sections 420 & 468, P. P. C., for want of prosecution. He had sought restoration of the appeal without success. It is urged on his behalf that once a Criminal Appeal is admitted, it must be decided on the merits, and cannot be dismissed for non-prosecution.

We consider that the point merits examination. The petitioner was serious about his appeal in the High Court as is shown by the application for restoration.

Leave to appeal is accordingly granted. Bail to continue.

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